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FEBRUARY 10, 2025: CALIFORNIA LAWMAKERS ANNOUNCE LEGISLATION TO STRENGTHEN PENALTIES FOR LOOTING, IMPERSONATION OF EMERGENCY PERSONNEL DURING WILDFIRES AND OTHER EMERGENCIES

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LOS ANGELES, Feb. 10 -- The Los Angeles County District Attorney issued the following news release:

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LOS ANGELES, CA -Today, Assemblymember Jesse Gabriel (D - Encino), Assemblymember Jacqui Irwin (D - Thousand Oaks), and Assemblymember Blanca Pacheco (D - Downey) announced the introduction of Assembly Bill (AB) 469, bipartisan legislation that provides law enforcement with better tools to crack down on looting and impersonation of emergency personnel during wildfires and other emergencies. AB 469 responds to recent criminal activity in mandatory evacuation areas and communities devastated by the Palisades and Eaton fires. Among other important changes, AB 469 would allow prosecutors to seek stronger penalties for looting and impersonation, close existing loopholes that can hinder prosecution, and better protect communities during the recovery and rebuilding process.

The new legislation was developed in close consultation with firefighters and law enforcement professionals and is supported by the California Professional Firefighters, the California District Attorneys Association, the California Police Chiefs Association, Los Angeles County Sheriff Robert G. Luna, Los Angeles County District Attorney Nathan J. Hochman, Ventura County District Attorney Eric Nasarenko, and Los Angeles County Supervisor Kathryn Barger.

What Assemblymember Jesse Gabriel Says

"Individuals who put our firefighters at risk and prey on communities when they are at their most vulnerable must be held accountable. Looters - particularly those who impersonate emergency personnel - create chaos and confusion, endanger residents and first responders, undermine public trust in evacuation orders, divert critical emergency resources, and victimize communities that already have suffered unimaginable harm. This legislation will provide law enforcement with better tools to crack down on looting and impersonation and encourage criminals to think twice before engaging in such egregious conduct."

What Los Angeles County District Attorney Nathan Hochman Says

"From the very beginning of the Los Angeles County wildfires, I have made it clear: Our Office has zero tolerance for the despicable crimes of those seeking to exploit this crisis like looting, arson, price gouging, impersonating first responders, and financial scams. We will arrest these criminals, then prosecute them, and then seek maximum sentences of prison or jail,"said Los Angeles County District Attorney Nathan J. Hochman."My Office strongly supports making looting a felony and increasing penalties for all crimes associated with natural disasters. I look forward to partnering with California State Assemblymembers Jesse Gabriel, Jacqui Irwin, Blanca Pacheco, and John Harabedian as we work to enact legislation to protect fire victims in Los Angeles County and ensure that criminals who prey on the vulnerable at their lowest moments when they've lost everything face serious consequences. Here's the warning: Commit these crimes at your own serious peril."

AB 469 would better protect Californians impacted by natural disasters by:

* Allowing prosecutors to seek stronger penalties for looting;

* Allowing prosecutors to seek stronger penalties for impersonating emergency personnel, including peace officers, firefighters, emergency medical personnel, US Armed Forces, California National Guard, utility workers, and government officials;

* Closing existing loopholes to better protect damaged structures as well as vehicles in mandatory evacuation zones;

* Ensuring protections continue beyond the active disaster and through the recovery and rebuilding process; and

* Ensuring those who are suspected of looting or impersonating emergency personnel are taken into custody (i.e., no citation and release).

Recent incidents in Los Angeles have highlighted the need for stronger protections. In the wake of the devastating Southern California wildfires, law enforcement has arrested dozens of individuals on suspicion of looting. Last month, two individuals from Oregon were arrested forimpersonating firefightersin the Palisades Fire evacuation zone. Such actions pose significant risks to public safety and undermine evacuation efforts, leading to confusion and potentially deterring residents from following critical public safety guidance. This endangers both the public and the first responders dedicated to protecting them. The legislation would allow prosecutors to seek felony charges for looting and impersonating emergency personnel, including theft from fire-damaged or evacuated homes.

The legislation is co-authored by Assemblymember Jacqui Irwin (D - Thousand Oaks), Assemblymember Blanca Pacheco (D - Downey), Assemblymember Heath Flora (R - Ripon), and Assemblymember Greg Wallis (R - Bermuda Dunes).

What California Leaders Say About the Bill Introduction:

"Listening to our constituents in the days and weeks since the fires, we have learned that their fear and confusion during evacuations were not only fueled by concerns of fire, but also from the threat of looting. Unfortunately, those fears were realized with dozens of arrests of individuals entering evacuation zones looking to re-victimize these residents. As we work on various ways to prevent and avoid another disaster like the Palisades and Eaton Fires as well as rebuild these communities, this legislation will speak to those concerns about safety and security within evacuation zones." -Assemblymember Jacqui Irwin (D-Thousand Oaks)

"When disaster strikes, no one should have to choose between following evacuation orders and protecting their property. This bill sends a clear message: criminal targeting of Californians during their most vulnerable moments will not be tolerated." -Assemblymember Blanca Pacheco (D-Downey)

"The devastation caused by the L.A. County Fires is unimaginable. Many people lost everything while others have been displaced from their homes. Those who are returning to a home still standing may be greeted with the realization that looting or theft occurred while they were evacuated. Recent media reports have indicated that some individuals were impersonating firefighters or other emergency responders for the purposes of these crimes. That cannot be tolerated, and we applaud Assemblymember Gabriel's effort to establish firm penalties for these crimes." -Brian K. Rice, President, California Professional Firefighters

"As District Attorney of Napa County, I have seen firsthand the devastation that wildfires and other disasters leave behind and the vulnerability they create for our communities. This bill will provide prosecutors with the tools needed to hold offenders accountable and safeguard our communities as they recover from these events." -Napa County District Attorney Allison Haley, California District Attorneys Association

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